

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung
Electronics Logitech Co., Ltd.**

RESPONDENT'S OPPOSITION TO COMPLAINANT'S MOTION TO COMPEL

TABLE OF CONTENTS

	Page(s)
BACKGROUND	1
LEGAL STANDARD	3
ARGUMENT	4
A. SEA's request to compel documents by a date certain is moot.....	4
B. SEA's request to compel production of documents from China in a manner that violates Chinese law should be denied	4
1. The request is premature because COSCO is acting in good faith to produce documents from China in a manner that is proportional to the needs of this case	4
2. SEA's request for unredacted documents with personal information in violation of PIPL is unwarranted based on a comity analysis	5
3. At a minimum, any order requiring COSCO to produce documents from China should be reasonably tailored	8
C. COSCO has responded adequately with data to SEA's interrogatories	9
CONCLUSION.....	10

TABLE OF AUTHORITIES

	Page(s)
Federal Cases	
<i>In re DiDi Glob. Inc. Sec. Litig.</i> , No. 21-cv-5807, 2025 WL 1735412 (S.D.N.Y. June 23, 2025)	4
<i>In re Hansainvest Hanseatische Investment-GmbH</i> , 364 F. Supp. 3d 243 (S.D.N.Y. 2018).....	9
<i>Marine Transport Logistics, Inc. v. CMA CGM SA</i> , 2023 WL 12052901 (F.M.C. Oct. 30, 2023)	3, 4
<i>Owen v. Elastos Found.</i> , 343 F.R.D. 268 (S.D.N.Y. 2023)	6
<i>Societe Nationale Industrielle Aerospatiale v. U.S. Dist. Ct. for S. Dist. of Iowa</i> , 482 U.S. 522 (1987).....	3, 4, 8
<i>White v. Eastside Union Sch. Dist.</i> , No. CV 12-4622 RGK(JCX), 2013 WL 12182033 (C.D. Cal. June 19, 2013)	10
Regulations	
46 C.F.R. § 502.141(e)(2)(ii)	3
46 C.F.R. § 502.141(e)(2)(ii)((A)	3
46 C.F.R. § 502.145(d)	10
Other Authorities	
Arendse Huld, “How Did Dior Violate China’s Data Privacy Law? Lessons from the PIPL Probe,” China Briefing (Sep 18, 2025), <i>available at</i> https://www.china-briefing.com/news/diors-pipl-violations-china-key-lessons/	9
AnJie Broad Law Firm, “Year in review: Privacy, data protection cybersecurity in China,” Lexology (Sept. 30, 2024), <i>available at</i> https://www.lexology.com/library/detail.aspx?g=79ea2bf1-bd54-439b-8429-01d4c93210ad	9
Chinese Civil Code Art. 1034.....	6

Nora Fangzhou Long, Brett Lingguang Wang, Amanda Yunshu Li, “Applying China’s Personal Information Protection Law to U.S. Discovery Requests,” Transnational Litigation Blog (Jul. 24, 2024), <i>available at</i> https://tlblog.org/applying-chinas-personal-information-protection-law-to-u-s- discovery-requests/	6
Restatement (Third) of Foreign Relations Law § 442	3, 4

RESPONDENT'S OPPOSITION TO COMPLAINANT'S MOTION TO COMPEL

Respondent COSCO Shipping Lines Co., Ltd. ("COSCO"), by its undersigned attorneys, respectfully submits this response to the Motion to Compel (Doc. No. 95) (the "Motion") of Complainant Samsung Electronics America, Inc. ("SEA").

SEA's Motion contains a variety of mischaracterizations and manufactured outrage, and the scope of the Motion and requested relief is unclear, suggesting that SEA is more focused on trying to obtain a strategic advantage in this case, rather than engaging in reasonable discovery. Setting aside inflated rhetoric and focusing on facts instead, the Motion should be denied for multiple reasons. First, SEA's Motion is moot with respect to documents in the U.S. and Korea, as well as a deadline for production of documents located in China. Second, SEA's request for an order compelling production of documents located in China is unreasonable because (a) COSCO is acting in good faith to produce documents from China in a manner that is proportional to the needs of this case, and (b) SEA's Motion sets up a conflict with Chinese law, particularly the Personal Information Protection Law ("PIPL"), and under a comity analysis, an order to compel is not warranted. Third, SEA's request for more unidentified data is not an appropriate document request, and more importantly, the request is moot after COSCO's production of additional data as a supplemental response to interrogatories on February 19. Any demand for more such data in a format of SEA's choosing would be disproportionate.

BACKGROUND

COSCO responded and objected to SEA's first set of interrogatories and document requests on July 18, 2025. *See* Complainant's Ex. A-1. Contrary to SEA's incorrect assertion otherwise (see Mot. at n.1.), COSCO *did* raise, and has not waived, objections to SEA's requests, including objections about burden and proportionality of requests. *See* Complainant's Ex. A-1.

This is complex litigation. COSCO has produced significant volumes of documents from multiple countries. COSCO notified SEA and the Presiding Officer that productions from China were subject to legal restrictions that “limit the export of certain data, creating significant and time-consuming hurdles.” Joint Mot. (Nov. 25, 2025) at 4. There is no dispute that COSCO has collected and produced a huge volume of documents in this case—thus far, collecting approximately 1.6 terabytes of data in the U.S., Korea, and China, and producing nearly 300,000 documents, comprising nearly 1,030,000 pages, including more recent productions from China on February 13 and 16, 2026 and supplemental data to respond to interrogatories on February 19. *See, e.g.*, Status Report (Doc. No. 94) (“RSR”) at 2.

As COSCO told SEA it would, and as reported in its RSR (Doc. No. 94) on February 9, COSCO completed productions from Korea and had already substantially completed productions from the U.S. Yet, that did not stop SEA from filing its Motion on February 11.

The same day, the Presiding Officer scheduled a conference for February 13, 2026 to address the schedule in this matter, discovery issues, and pending motions. Based on that conference, COSCO determined that an affidavit or declaration from a Chinese attorney addressing the issues under Chinese law that affect the production of documents from China was necessary and, facing delays caused by the Lunar New Year holiday in China, February 15, 2026, COSCO filed an Emergency Motion, seeking an enlargement of time to respond to the Motion so that it could obtain such a declaration. SEA filed an opposition on February 16, 2026, arguing that COSCO had not shown “good cause,” but effectively conceding that: (1) COSCO intended to obtain a declaration from Chinese co-counsel; (2) the Lunar New Year holiday in China is important and that offices and courts in China are closed; (3) SEA would not be unduly prejudiced by an extension; and (4) an extension would not materially impair the schedule. *See*

Emergency Mot. at ¶¶ 5, 11-12. On February 18, the Presiding Officer denied COSCO's Emergency Motion. COSCO maintains, consistent with its Emergency Motion (see ¶¶ 5-6), that it is unduly prejudiced in its defense on the merits because it could not obtain a declaration from Chinese counsel prior to filing this opposition.

As instructed, the parties filed a proposed schedule on February 18.

LEGAL STANDARD

When evaluating a motion to compel, courts and agencies must consider the relevance of the information requested and “proportional[ity].” 7 Moore's Fed. Practice – Civil § 37[2][a]; 46 C.F.R. § 502.141(e)(2)(ii). “Pursuant to the proportionality requirements, a motion to compel must be denied if,” *inter alia*, “[t]he discovery sought is unreasonably cumulative or duplicative” or “[t]he discovery sought can be obtained from some other source that is more convenient, less burdensome, or less expensive.” 7 Moore's Fed. Practice – Civil at § 37[2][d]. 46 C.F.R. § 502.141(e)(2)(ii)((A). “Before issuing an order for production of documents... located abroad, the court – or where authorized, the agency – should scrutinize a discovery request more closely than it would scrutinize comparable requests for information located in the United States.” Restatement (Third) of Foreign Relations Law § 442, Cmt. a. And if an order compelling production of documents located outside the U.S. would result in a conflict with foreign law, a comity analysis is required. *See Societe Nationale Industrielle Aerospatiale v. U.S. Dist. Ct. for S. Dist. of Iowa*, 482 U.S. 522, 544 n.29 (1987) (“*Societe*”); *Marine Transport Logistics, Inc. v. CMA CGM SA*, 2023 WL 12052901, at *7-9 (F.M.C. Oct. 30, 2023) (“*MTL*”). The analysis should take into consideration: (1) the importance of the documents requested; (2) the degree of specificity of the discovery request(s); (3) whether the documents requested originated in the U.S.; (4) the availability of alternative means of obtaining the documents; (5) the extent to which

noncompliance with the request would undermine important interests of the U.S., or compliance with the request would undermine important interests of the state where the documents are located; (6) good faith of the party resisting a motion to compel; and (7) the potential for hardship from complying with an order compelling discovery. *See, e.g.*, Restatement (Third) of Foreign Relations Law § 442(1)(c); *In re DiDi Glob. Inc. Sec. Litig.*, No. 21-cv-5807, 2025 WL 1735412, at *2 (S.D.N.Y. June 23, 2025); *MTL*, 2023 WL 12052901, at *7-9.¹

ARGUMENT

A. SEA’s request to compel documents by a date certain is moot.

As explained in the February 13 conference, COSCO has substantially completed production of U.S. and Korea documents. The joint motion filed February 18 includes a proposed schedule with a due date to complete the production of documents. The Motion does not identify any specific requests or documents that have not been produced from the U.S. or Korea, nor does it move for a different deadline for production of documents. Thus, the Motion’s request to compel documents from the U.S. or Korea, or the production of documents from China by a date certain, is moot and should be denied.

B. SEA’s request to compel production of documents from China in a manner that violates Chinese law should be denied.

1. The request is premature because COSCO is acting in good faith to produce documents from China in a manner that is proportional to the needs of this case.

As COSCO maintains, despite the expense and burden of producing documents from China, COSCO is doing so, attempting to balance SEA’s requests for discovery with COSCO’s

¹ In *MSC Mediterranean Shipping Co. S.A. v. FMC*, the D.C. Circuit did not (and did not need to) apply the full comity analysis required by *Societe*. *See* 141 F.4th 222, 235-236 (D.C. Cir. 2025). Chief ALJ Wirth and the Commission did perform a full comity analysis in *MTL v. CMA*.

obligations to comply with Chinese law.² Indeed, COSCO has made two productions of documents from China, and it will continue producing documents on a rolling basis, as previously stated. *See* RSR (Doc. No. 94) at 3-4.

COSCO is engaged in a proportionate, reasonable production of documents. Although detention disputes may have resulted in emails to and from Shanghai, SEA's assertion that there is a "material gap in COSCO's production" that "deprives SEA of key evidence relevant to its detention claims," Mot. at 7 n.5, is vastly overblown. Initiation and resolution of any relevant detention dispute would be in emails from and to the U.S., *including from and to SEA*, in the event of a relevant dispute. Indeed, the email relied on by SEA—COSCO0246449 (Complainant's Ex. A-21)—includes SEA and COSCO Shanghai email recipients and expressly states that those involved in Shanghai "are in copy and will answer accordingly." Moreover, SEA did not identify *any* such disputes in its Motion, or in any responses to COSCO's discovery requests (the subject of a forthcoming motion to compel by COSCO), and SEA did not explain why it does not have emails involving COSCO in Shanghai about disputes in SEA's own files. In fact, SEA_COSCO-0001781 indicates SEA does. *See Exhibit A*.

2. SEA's request for unredacted documents with personal information in violation of PIPL is unwarranted based on a comity analysis.

PIPL regulates activities regarding the processing of personal information ("PI") and provides compliance requirements for cross-border transfer of PI. If a "personal information

² Apart from restrictions under PIPL, other Chinese laws and regulations set requirements for the export of special types of data, including "important data," "state secrets," and "export control related data." *See, e.g.*, Cybersecurity Law (Art. 37); Security Assessment Measures for Data Cross-Border Transfer (Art. 19); Regulation of Protecting the Security of Critical Information Infrastructure (Art. 2, 8, 9); Cybersecurity Standard Practice Guidelines – Security Certification Specification for Cross border Personal Information Processing Activities V2.0; Announcement on Implementing Personal Information Certification; Implementation Rules for Personal Information Protection Certification. COSCO's review for such special data must continue.

processor” intends to provide materials containing PI located in China to territories outside of China, the entity must comply with PIPL requirements unless an express exception applies. *See, e.g.,* PIPL art. 3 (applying “to the processing of PI of natural persons within the territory of the [PRC].”). Names, email addresses, and signature blocks of employees are PI under PIPL.³

COSCO documents located in China contain PI subject to PIPL, including names, email addresses, and signature blocks. Despite careful review, COSCO’s counsel, including Chinese counsel, have not identified any applicable exemption under PIPL to permit disclosure of such PI without complying with PIPL.⁴ Absent such an exception, unredacted PI can only be provided if, *inter alia*, sufficient notice and separate consent is obtained from individuals who would be affected.⁵ Complying with notice and consent requirements would be time consuming and result in uncertainty because individuals could, as a matter of right, refuse to consent. To provide faster productions and certainty, COSCO has produced documents from China with PI redacted, as it informed SEA in advance.

³ Chinese Civil Code Art. 1034 states: “Personal information refers to all kinds of information recorded by electronic or otherwise that can be used to independently identify or be combined with other information to identify specific natural persons, including the natural persons’ names,... addresses, telephone numbers, e-mail addresses... whereabouts, etc.” *See also* PIPL art. 4. Even greater protection for “sensitive personal information” in Article 28 shows that PIPL encompasses business records. *Owen v. Elastos Found.*, 343 F.R.D. 268, 284 (S.D.N.Y. 2023).

⁴ Article 13 of PIPL provides seven exceptions to the *consent* requirement. *See Owen*, 343 F.R.D. at 286. Art. 13(III) and (VII) provide exceptions “where it is necessary for the performance of statutory duties or statutory obligations” or “other circumstances provided by laws and administrative regulations.” They cannot properly be interpreted to exempt discovery in U.S. proceedings. Such an interpretation is incompatible with Article 41, which prohibits providing PI to foreign judicial or law enforcement authorities without approval from Chinese authorities. It would also be contrary to Article 38. *See also* Nora Fangzhou Long, Brett Lingguang Wang, Amanda Yunshu Li, “Applying China’s Personal Information Protection Law to U.S. Discovery Requests,” Transnational Litigation Blog (Jul. 24, 2024), *available at* <https://tlblog.org/applying-chinas-personal-information-protection-law-to-u-s-discovery-requests/>.

⁵ Under Article 39 of PIPL, exporting PI of employees from China to the U.S. would require COSCO to request separate consent from individuals whose PI would be provided, and provide various information to those individuals.

a. Applying the comity analysis, SEA's Motion should be denied.

First, SEA has not demonstrated the importance of documents from China with unredacted PI. The broad and vague Motion is unreasonable; as the evidence shows (see Section B.1, *supra*), SEA should have in its own files, and in U.S. and/or Korea documents COSCO produced, communications to and from COSCO Shanghai about detention disputes. To the extent an email thread contains custodians in China as well as the U.S. and/or Korea, it would be unreasonable and disproportionate to require COSCO to provide unredacted PI from a custodian in China when the same information can be identified from emails COSCO already produced. *See, e.g., Exhibit B* (showing a long unredacted email thread produced from a custodian in the U.S., with a smaller redacted subpart of the same thread from a different custodian in China). Further, documents produced from China contain the *substance* of the email communications at issue, even though names, email addresses, and signature blocks are redacted. *See, e.g., id.*

Second, SEA's Motion is not specific; it is vague and overly broad. SEA does not reasonably identify or explain any particular information necessary to prosecute its case, especially considering the extensive scope of documents COSCO has already produced, not to mention SEA's own documents.

Third, COSCO produced documents from the U.S. SEA's Motion seeks documents that did not originate from and cannot be accessed in the U.S.

Fourth, there are other means of obtaining (or at least a significant portion of) information sought. SEA should have, *in its own files*, communications involving COSCO in Shanghai related to any relevant detention disputes, and documents already produced by COSCO include such communications. *See, e.g., Ex. A; Ex. B; Complainant's Ex. A-21.*

Fifth, any general interest of the U.S. in having its own procedural rules applied in discovery has not been fully advanced in this case to date, and those rules should not be unevenly

applied now. COSCO is producing documents from Korea and China. Compare this to SEA's affiliates, the Third-Party Respondents, who refused to participate under discovery rules for parties, and upon whom Korea has refused to serve FMC subpoenas, all of which has hamstrung COSCO's discovery of relevant information and documents. Further, the importance of unredacted PI from China is limited with respect to fairly adjudicating this case, as the *substance* of emails remains unredacted. On the other hand, China's interest in ensuring compliance with its laws and protecting the personal information and rights of its people will be undermined by PIPL violations. Unlike foreign "blocking" statutes in *Societe* and *MSC*, which are procedural in nature, intended to prevent discovery in the U.S., PIPL is not merely a *procedural* blocking statute; it is a *substantive* law to protect individuals' personal data and identity. *See* PIPL art. 1.

Sixth, COSCO is acting in good faith to balance discovery in this case with its obligations to comply with Chinese law by producing documents from China with PI redacted. SEA does not dispute that PIPL restricts cross-border PI disclosures.

Seventh, there is a significant, material risk of COSCO being found liable for violating PIPL.⁶ As of July 4, 2024, there had been "604 administrative penalties issued for violations of the PIPL."⁷ Of course, there have been more since then.⁸

3. At a minimum, any order requiring COSCO to produce documents from China should be reasonably tailored.

⁶ Chinese authorities can: order violators to make corrections, impose fines, suspend business, revoke business permits or licenses, and impose criminal sanctions. *See* PIPL art. 66, 71.

⁷ AnJie Broad Law Firm, "Year in review: Privacy, data protection cybersecurity in China," Lexology (Sept. 30, 2024), *available at* <https://www.lexology.com/library/detail.aspx?g=79ea2bf1-bd54-439b-8429-01d4c93210ad>.

⁸ *See, e.g.,* Arendse Huld, "How Did Dior Violate China's Data Privacy Law? Lessons from the PIPL Probe," China Briefing (Sep 18, 2025), *available at* <https://www.china-briefing.com/news/diors-pipl-violations-china-key-lessons/>.

Because SEA's request to compel is vague and disproportionate on its face, if the Presiding Officer compels COSCO to produce documents from China in a manner not compliant with PIPL, such an order should be reasonably tailored. First, if a document (e.g., email thread) contains custodians in China as well as the U.S. and/or Korea, COSCO should not be compelled to produce an unredacted version of that email from China. *See, e.g.*, Ex. A; Ex. B. Second, to the extent unredacted versions are compelled, SEA should, as a condition precedent, be directed to identify specific documents for which an unredacted version is necessary, rather than asserting a broad entitlement, irrespective of substantive content or materiality. Third, COSCO should be permitted to designate such documents "Attorneys' Eyes Only" to avoid broader circulation of PI. Fourth, SEA should be required to indemnify COSCO against any violation of PIPL to balance the risk against SEA's vaguely asserted "need" for PI. *Cf. In re Hansainvest Hanseatische Investment-GmbH*, 364 F. Supp. 3d 243, 252 (S.D.N.Y. 2018) (requiring Section 1782 applicant to assume costs of compliance and "indemnify Respondents against any potential breaches of European data privacy laws").

C. COSCO has responded adequately with data to SEA's interrogatories.

SEA complains that COSCO "has not provided a comprehensive export" of data "relating to SEA shipments," in a "format that SEA could meaningfully use." Mot. at 8. SEA implies this can easily be done because "COSCO maintains information in its EDI systems capable of identifying SEA shipments." *Id.* The Motion does not identify particular data SEA is seeking to compel that is available and not already produced. That, in and of itself, is fatal to SEA's request.

COSCO was not required by the discovery rules to create bespoke reports and did refer SEA to documents from which the information could be ascertained. *See* 46 C.F.R. § 502.145(d). SEA seeks to compel the creation of a new, customized document in a format it dictates. This is

not appropriate for a document request. *See, e.g., White v. Eastside Union Sch. Dist.*, No. CV 12-4622 RGK(JCX), 2013 WL 12182033, at *1 (C.D. Cal. June 19, 2013) (collecting cases). And as explained in COSCO's responses to interrogatories, information SEA seeks is available from other documents produced by COSCO, such as invoices, bills of lading, and service contracts. *See* 46 C.F.R. § 502.145(d); Complainant's Ex. A-10. SEA, as the consignee on each bill of lading/sea waybill and as an affiliate to signatories of the relevant service contracts under which the cargo moved, already has this information in its possession.

Finally, as SEA acknowledged, COSCO, in a good faith attempt to avoid protracted discovery disputes, but without waiving its objections, produced COSCO0624910 in response to SEA's Interrogatories Nos. 2 and 3.⁹ COSCO also supplemented its production of data on February 19, 2026, by producing COSCO1029252 through COSCO1029254, rendering this request moot as well. With significant time and effort, COSCO collected and compiled data SEA requested in response to those interrogatories.¹⁰ Thus, COSCO has already produced a significant amount of data and documents and should not be compelled to produce more.

CONCLUSION

For the reasons stated herein, the Motion should be denied.

⁹ COSCO's objections to Interrogatory Nos. 2 and 3 appear in SEA's Exhs. A-8 – A-10. COSCO timely objected that those interrogatories were (1) overbroad, as some of the information sought was not proportionate to the needs of the case; (2) unreasonably vague, as "SEA Shipments" were undefined; and (3) unduly burdensome due to the time and effort involved, especially because SEA could identify requested information by examining business records produced by COSCO. COSCO has not waived these objections to the extent SEA demands more data.

¹⁰ Creating a bespoke report cannot be done by COSCO with the mere push of a button, and the burden to produce COSCO0624910, COSCO1029252-COSCO1029254, was significant. As COSCO has explained to SEA on multiple occasions, COSCO maintains data in more than one database with various modules, and those (like SEA's) have changed over time. Not surprisingly, SEA has represented to COSCO that SEA's data systems also changed over the relevant period (2020-2022).

DATED: February 19, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 19th day of February, 2026, a true and correct copy of the foregoing document, **Respondent's Opposition to Complainant's Motion to Compel**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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